

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING CHAPTER 2.96, ETHICAL OBLIGATIONS OF PUBLIC OFFICIALS, PUBLIC MEMBERS AND CITY EMPLOYEES, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, SPECIFYING THE ETHICAL DUTIES AND OBLIGATIONS OF PUBLIC OFFICIALS, PUBLIC MEMBERS AND EMPLOYEES OF THE CITY OF CHEYENNE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 2.96, Ethical Obligations of Public Officials, Public Members and City Employees, of Title 2, Administration and Personnel, of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

2.96.010 – Purpose and construction.

- A. This chapter is promulgated in accordance with W.S. 15-1-127(c) and recognizes that every public official, public member and city employee should act in the best interest of the city and promptly disclose any potential or actual personal or private interest or conflict of interest when acting in their official capacity. The purpose of this chapter is to recognize that the appearance of a public official having a personal or private interest or the appearance of a conflict of interest by a public member or city employee can be as serious and potentially damaging to the public trust as a public official having an actual personal or private interest or a public member or city employee having an actual conflict of interest. Accordingly, any potential personal or private interest or conflict of interest should be disclosed, evaluated and administered in a similar manner as any actual personal or private interest or conflict of interest.
- B. Nothing in this chapter shall be construed to supersede the obligations imposed upon public officials under W.S. 9-13-101 through 9-13-109 or the requirements imposed under W.S. 15-9-220 or 16-6-118, which provisions shall control to the extent inconsistent with this chapter.

2.96.020 – Definitions.

- A. As used in this chapter:
 - 1. "Conflict of interest" means any circumstance where a public member or city employee is in the position in their official capacity to approve or influence a policy or action of the City of Cheyenne, which policy or action will likely affect the financial interests of:

- a. The public member or city employee or the member's or employee's immediate family member or domestic partner;
 - b. Any organization in which the public member, city employee or an immediate family member or domestic partner of the member or employee is a director, trustee or officer or has more than five percent (5%) equity or investment interest or the right to acquire any equity or investment interest of more than five percent (5%); or
 - c. Any organization in which the public member, city employee or an immediate family member or domestic partner of the member or employee has a compensation arrangement.
2. "City employee" means an appointed, classified or unclassified full-time or part-time employee of the City of Cheyenne who receives a salary or wage as remuneration for their time, service and efforts;
3. "Domestic partner" means a person with whom a public official, public member or city employee maintains a household and an intimate relationship, other than to whom the public official, public member or employee is legally married.
4. "Immediate family member" means a person's parent, brother, sister, spouse, child, or the child or spouse of an immediate family member;
5. "Official capacity" means an action of a public official, public member or city employee, either exercisable alone or with others, to approve, disapprove, shape or otherwise direct the action of the city council, the action of a city board or commission or the action of a department of the City of Cheyenne;
6. "Personal or private interest" means an interest which is direct and immediate as opposed to speculative and remote and is an interest that provides the public official a greater benefit or a lesser detriment than it does for a large or substantial group or class of persons who are similarly situated. In determining whether a public official has a personal or private interest in a matter, the public official shall recognize the importance of his or her right to represent their constituency;
7. "Private benefit" means the receipt by a public official, public member or city employee of a gift which resulted from him or her holding an office or position with the City of Cheyenne. For the purposes of this paragraph, "gift" shall not include any loan, gift, gratuity, special discount or hospitality with a value of two hundred fifty dollars (\$250.00) or less;
8. "Public official" or "public member" means any elected or appointed Cheyenne City Council person and any appointed board or commission member serving on a board or commission of the City of Cheyenne.

2.96.030 – Public members conflicts of interest; disclosure; reporting.

- A. Every public member shall have the affirmative duty to promptly and publicly disclose the existence of any conflict of interest or potential conflict of interest with respect to any proposed transaction, contract, policy, program or other matter under consideration by the public member in their official capacity. When in doubt, the public member shall disclose matters as potential conflicts of interest and disclose all relevant facts relating to the potential conflict.
- B. If a public member declares a conflict of interest on a proposed transaction, contract, policy, program or other matter under consideration, or if two-thirds of the board or commission less the public member with the alleged conflict, determine that a conflict of interest exists, the conflicted public member shall leave the meeting and any future meetings during the times where the conflict may be discussed or considered. The absence of the conflicted public member shall be recorded in the official minutes of the board or commission.
- C. No public member, upon the disclosure of a conflict of interest or a determination that conflict exists in accordance with subsection (B) of this section, shall vote upon or engage in conduct in their official capacity intended to influence or otherwise affect the outcome of an issue being considered by the board or commission for which the public member is conflicted.
- D. If any public member has reason to believe that another public member of the same board or commission has a conflict of interest or potential conflict of interest, the public member with such belief shall inform the board or commission, including disclosing all relevant facts and concerns relating thereto.
- E. If any person has reason to believe that a public member presently has or previously had a conflict of interest, the person may bring a complaint to the attendant board or commission chairman. The board or commission chairman that received the complaint shall acknowledge receipt of the complaint and if he or she determines the complaint has merit, shall bring the issue to the attention of the members of the board and commission. Any potential conflict of interest raised in accordance with this subsection shall be administered as provided by subsection (B) of this section.

2.96.040 – Public officials; personal or private interest; abstention and votes.

- A. No public official shall decide or vote on any matter in their official capacity in which the public official or public member has a personal or private interest.
- B. Any public official who has a personal or private interest in a matter under consideration shall abstain from voting. Any abstention shall be recorded in the official records of the governing body. An abstention under this section shall only be required in clear cases of a personal or private interest.

- C. If a public official votes on a matter in their official capacity, he or she shall decline to take any financial ownership in the transaction, contract, arrangement, policy or other such matter upon which he or she voted for the entirety of the time that official is a member of city council.
- D. If any person has reason to believe that a public official presently has or previously had a conflict of interest, the person may bring a complaint to the presiding officer of the governing body. The presiding officer shall acknowledge receipt of the complaint and if the presiding officer determines the complaint has merit, shall bring the issue to the attention of the members of the governing body. Any potential conflict of interest raised in accordance with this subsection shall be administered consistent with section 2.96.030(B) of this chapter.

2.96.050 – Misuse of office; use of title prestige of office.

- A. No public official, public member or city employee shall:
 - 1. Supervise or manage an immediate family member or domestic partner who is in an office or position or has employment with the City of Cheyenne;
 - 2. Advocate or cause the employment, appointment, promotion, transfer or advancement of a family member or a domestic partner to an office or position of the City of Cheyenne;
 - 3. Use his or her office or position for their own private benefit or use public funds, time, personnel, facilities or equipment for his or her private benefit or that of another person or entity unless otherwise authorized by law.

2.96.060 – Violations by public members, public officials or city employees.

A violation of any provision of this chapter may constitute sufficient cause for termination of a person's employment with the City of Cheyenne, for the censure of a public official or public member or the removal of a public official or public member from his or her office or position.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



CITY ATTORNEY'S OFFICE
MUNICIPAL BUILDING
2101 O'NEIL AVENUE, ROOM 308
CHEYENNE, WYOMING 82001
TELEPHONE: (307) 637-6306 | FACSIMILE: (307) 637-6373

MEMORANDUM

To: Honorable Mayor Patrick Collins and Members of the City Council

From: John Brodie, Deputy City Attorney

Date: May 17, 2023

Subject: Ordinance creating Chapter 2.96, Ethical Obligations of Public Officials, Public Members and City Employees, of Title 2, Administration and Personnel, specifying the ethical duties and obligations of public officials, public members and employees of the City of Cheyenne.

This ordinance is being proposed in accordance with Wyoming Statute 15-1-127(c), which requires the governing body of each city and town, by ordinance, to "prescribe requirements governing conflicts of interest by any employee and any member of his immediate family and procedures by which any employee and any member of his immediate family may be exempt from those requirements." The proposed ordinance also prescribes requirements and procedures governing: (1) Public officials who have a personal or private interest in a matter under consideration by the city council; and (2) Public members who have a conflict of interest with respect to any proposed transaction, contract, policy, program or other matter under consideration by the public member in their official capacity.

This proposal borrows language and concepts promulgated by the City of Casper under Chapter 2.60 (*Code of Ethics*) of the city's municipal code. A copy of Chapter 2.60 is attached to this memorandum for your review and consideration.

Chapter 2.60 CODE OF ETHICS¹

2.60.010 Definition of terms.

For the purpose of this chapter, the following terms, phrases, words and abbreviations shall have the meanings ascribed to them below. Words not defined shall be given their common and ordinary meaning.

A. "Anything of value" means:

1. A pecuniary item, including money or a bank bill or note;
2. A promissory note, bill of exchange, order, draft, warrant, check or bond given for the payment of money;
3. A contract, agreement, promise or other obligation for an advance, conveyance, forgiveness of indebtedness, deposit, distribution, loan, payment, gift, pledge or transfer of money;
4. A stock, bond, note or other investment interest in an entity;
5. A right in action;
6. A gift, tangible good, chattel or an interest in a gift, tangible good or chattel;
7. A work of art, antiques or collectible;
8. An automobile or other means of personal transportation;
9. Real property or an interest in real property, including title to realty, a fee simple or partial interest, present or future, contingent or vested within realty, a leasehold interest or other beneficial interest in realty;
10. An honorarium or compensation for services arising out of the person's service as a public official, public member, or employee;
11. The sale or trade of anything of value for consideration that would ordinarily not be available to a member of the public; or with a rebate or at a discount in its price, unless the rebate or discount is made in the ordinary course of business to a member of the public, or any group or category thereof, but without regard to that person's status as a public official, official or public employee.
12. A promise or offer of employment;
13. Any other thing of value that is pecuniary or compensatory in value to a person.

"Anything of value" does not mean a campaign contribution properly received and disclosed, as is necessary or required.

¹Editor's note(s)—Ord. No. 5-18, § 1, adopted May 15, 2018, repealed Ch. 2.60, which pertained to public service code of ethics and derived from prior code §§ 2-61—2-64, 2-65(a), (b), (c), 2-66—2-69; Ord. No. 39-00 §§ 1—6, adopted 2000; Ord. 21-02 §§ 1—8, 10—12, adopted 2002; and Ord. No. 21-14, §§ 1—3, adopted Sept. 2, 2014.

Subsequently, Ord. No. 29-19, adopted Oct. 15, 2019, enacted new provisions to read as herein set out.

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- B. "Business" means a corporation, partnership, sole proprietorship, LLC, or other type of organization, entity, or association which may be engaged in the buying, selling, exchanging, of commodities, realty, services or anything of value.
- C. "Compensation" includes:
1. An advance, conveyance, forgiveness of indebtedness, deposit, distribution, loan, payment, gift, pledge or transfer of money or anything of value; or
 2. A contract, agreement, promise or other obligation for an advance, conveyance, forgiveness of indebtedness, deposit, distribution, loan, payment, gift, pledge or transfer of money or anything of value, for services rendered or to be rendered.
- "Compensation" does not include:
1. Contractual salary or wage, hourly wage, employment benefits, reimbursement of expenses, if the reimbursement does not exceed the amount actually expended for the expenses, and if the reimbursement is substantiated by an itemization of expenses; or
 2. Per diem payments or mileage and/or vehicle allowances paid by the employing government entity in accordance with applicable law;
- D. "Confidential information" means information which is defined by Wyoming as confidential; in this regard attorney-client privilege between the city council and its attorney is a privilege belonging to the council, as an assembly, and shall not be waived unless a majority of the body so directs.
- E. "Domestic partner" means a person with whom a public official, public member or city employee maintains a household and an intimate relationship, other than to whom the public official, public member or employee is legally married.
- F. "Employee" means every appointed, classified or unclassified, full-time or part-time employee of the city of Casper who receives a salary or wage as remuneration for their time, service and efforts.
- G. "Family member" means an individual, who is the spouse, parent, sibling, child, grandparent or grandchild;
- H. "Financial interest" means anything of value which yields directly or indirectly a benefit-other than the authorized salary, wage and benefits and remuneration for services to the city, to the "employee" or "public official" or "public member".
- I. "Gift" does not include any loan, gift, gratuity, special discount or hospitality with a value of two hundred fifty dollars or less.
- J. "Official responsibility and official capacity" means acting on a board or commission position, either exercisable alone or with others, and while acting in that position can vote to approve, disapprove, shape and/or otherwise direct the board's or commission's actions.
- K. "Personal interest" is:
1. With respect to a "public official," "public member" or "employee" an interest which is direct and immediate as opposed to speculative and remote; and
 2. An interest that provides the public official, public member, or employee, a greater benefit or a lesser detriment than it does for a large or substantial group or class of persons who are similarly situated.
- L. "Public member" means a member of the public not employed by the city and who is not a "public official," who is appointed to a board or commission while acting within "official responsibility" or "official capacity" of the city of Casper.

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- M. "Public official" or "public member" means: every elected or appointed Casper City Council person, and every appointed board or commission member serving on a board or commission of the city of Casper.

(Ord. No. 29-19, 10-15-2019)

2.60.020 Use of title prestige of public office.

- A. No public official, public member, or employee shall use his or her office or position for his or her private benefit.
- B. As used in this section, "private benefit" means the receipt by the public official, public member, or employee of a gift which resulted from his/her holding that office or position.

(Ord. No. 29-19, 10-15-2019)

2.60.030 Nepotism.

- A. No public official, public member, or employee shall advocate or cause the employment, appointment, promotion, transfer or advancement of a family member or a domestic partner to an office or position of the city of Casper. A public official, public member, or employee shall not supervise or manage a family member or domestic partner who is in an office or position or has employment with the city of Casper, Wyoming.
- B. A public official, public member or employee, acting in his or her official capacity, shall not participate in his or her official responsibility or capacity regarding a matter relating to the employment or discipline of a family member or domestic partner.

(Ord. No. 29-19, 10-15-2019)

2.60.040 Misuse of office.

A public official, public member, or employee shall not use public funds, time, personnel, facilities or equipment for his or her private benefit or that of another person or entity unless the use is authorized by law.

(Ord. No. 29-19, 10-15-2019)

2.60.050 Official decisions and votes.

- A. Official Decisions and Votes.
1. A public official or public member shall not make an official decision or vote on an official decision if the public official or public member has a personal interest in the matter. In determining whether he or she has a personal interest in a matter, the public official or public member shall recognize the importance of his or her right to represent his or her constituency and shall abstain from voting only in clear cases of a personal interest, as defined in this subsection. A public official or public member shall not vote to give money or any direct financial benefit to himself or herself except for tax reductions affecting the general public. For purposes of this section, a personal interest is:
 - a. With respect to the public official or public member, an interest which is direct and immediate as opposed to speculative and remote; and
 - b. An interest that provides the public official or public member, a greater benefit or lesser detriment than it does for a large or substantial group or class of persons who are similarly situated.

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2. A public official or public member, described by subsection "a" of this section, shall abstain from voting on the decision and from making any official decision in the matter. The public official's or public member's abstention from voting must be recorded in the city's, board's or committee's official records.
 3. This section shall not be construed to supersede Wyoming Statutes Sections 15-9-220, or 16-6-118. Those provisions shall control to the extent inconsistent with this section.
- B. Definition of/Purpose for Conflict of Interest. Prohibition.
1. Definition of "Conflict of Interest." A conflict of interest will be deemed to exist, whenever an individual is in the position to approve or influence policies or actions of the city of Casper or one of its boards or commissions (hereafter city), or reasonably appears to be in a position to approve or influence policies or actions of the city, which involve or could harm, or benefit financially: (i) the individual; (ii) any member of the member's immediate family (spouse, parents, children, brothers or sisters, and spouses of these individuals and/or cohabitation partner); (iii) any organization in which he or she or an immediate family member or cohabitation partner is a director, trustee or officer or has more than five percent equity or investment interest or the right to acquire any equity or investment interest of more than five percent; (iv) any organization in which he or she or an immediate family member or cohabitation partner has a compensation arrangement; For the avoidance of doubt, service on a joint powers board while on the city council, and service as a liaison or representative to a city of Casper commission or board, shall not constitute a conflict of interest, but the duty of the council member is to act in the best interest of the city.
 2. Purpose. The purpose of this policy recognizes the mere appearance of a conflict may be as serious and potentially damaging to the public trust as an actual conflict. Therefore, potential conflicts must be disclosed, evaluated and managed with the same thoroughness as actual conflicts. Each city council member shall promptly disclose any conflict of interest or potential conflicts of interest that exist or may arise; a council member is to act in the best interest of the city.
 3. Procedures Regarding Conflicts of Interest:
 - a. Duty to Disclose:
 - i. In connection with any proposed transaction, contract, arrangement, policy, program or other matter being considered by the city of Casper or its governing body, a council member shall promptly disclose the existence of any conflict or potential conflict that may give rise to a conflict of interest with respect to the proposed transaction, contract arrangement, policy, program or other such matter.
 - ii. Potential conflicts of interest can be seriously damaging to the public's trust. A council member shall promptly disclose the existence of any potential conflict of interest. When in doubt, the council member shall disclose matters as potential conflicts of interest and disclose all relevant facts relating to the potential conflict.
 - iii. If any council member has reason to believe that another council member has a potential conflict of interest, the council member with such belief shall inform the governing body, including disclosing all relevant facts and concerns relating thereto.
 - iv. If any citizen or group of citizens has reason to believe that a council member has or had a conflict of interest, the citizen or group of citizens can bring the complaint to a council member, who shall forward the complaint to the mayor or the vice mayor. The mayor or vice mayor will acknowledge receipt of the complaint to the complainant and will advise the complainant that appropriate measures will be taken, based upon a review of the complaint, which may include communications with the parties, city staff or others as deemed necessary.

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- b. Procedures for Addressing a Conflict of Interest.
 - i. If a council member declares a conflict of interest, or a potential conflict of interest exists, or two-thirds of the governing body less the member with an alleged potential conflict determine that a conflict of interest exists, the conflicted member may make a presentation to the governing body in open session regarding the conflict of interest but shall only state facts; the member shall not argue for or against the item under consideration. The conflicted member shall then leave the meeting and all future meetings where the potential conflict may be discussed or considered and shall not be present during any discussion of the matter which gave rise to the conflict of interest or potential conflict of interest of the member.
 - c. Duty to Abstain.
 - i. After disclosing the existence of a potential conflict, the council member shall refrain from using their potential influence (either at or outside a council meeting, or otherwise) to influence the governing body's handling of the transaction, contract, arrangement, policy, program, or other matter.
 - ii. No council member may vote on, or each council member must abstain from voting on, any matter in which the council member has a conflict of interest or potential conflict of interest.
- C. Preemptive Policy to Avoid Conflicts of Interest or the Appearance of a Conflict of Interest.
- 1. If a council member votes on a matter before council, he or she shall decline to take any financial ownership in the transaction, contract, arrangement, policy, or other such matter upon which he or she voted, for the entirety of the time that member is a member of city council and/or is a city council board or commission appointee.

(Ord. No. 29-19, 10-15-2019; Ord. No. 21-20, 10-20-2020)

2.60.060 Actions taken while negotiating for employment.

A public official, public member, or employee may not vote or take an official action in a matter affecting a person with whom the public official, public member, or employee is negotiating for prospective employment.

(Ord. No. 29-19, 10-15-2019)

2.60.070 Consequences to public officials, officials and employees.

Violation of any provision of this act may constitute sufficient cause for termination of an employee's employment or for the censure of the public official or public member or the removal of a public official or public member from his office or position.

(Ord. No. 29-19, 10-15-2019)

2.60.080 Effective date.

This chapter shall become effective twenty-one days after council has approved the ordinance [from which this chapter derives] on third reading.

(Ord. No. 29-19, 10-15-2019)
